



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DEC 14 1990

DOT-E 10450
(FIRST REVISION)

1. British Aerospace PLC, Stevenage Herts, United Kingdom (U.S. Agent: British Aerospace Inc., Arlington, VA), is hereby granted an emergency exemption from certain provisions of this Department's Hazardous Materials Regulations to transport packages prescribed herein of Class A and B explosives for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the transportation of certain Class A and B explosives in cargo aircraft, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on an application dated August 28 and 29 and September 13, 1990, submitted by British Aerospace, in accordance with 49 CFR 107.113 and 107.115 and a determination that it is necessary to preclude serious economic loss.

3. HAZARDOUS MATERIALS (Descriptor and class). Explosive projectile (Warhead, rocket UN 0286 per ICAO), classed as Class A explosive; Rocket ammunition with inert loaded projectile, (Rockets UN 0183 per ICAO), classed as Class B explosive.

4. PROPER SHIPPING NAME (49 CFR 172.101). Explosive Projectile, Rocket ammunition with inert loaded projectile, or the ICAO proper shipping names, Warhead, rocket, or Rockets, as appropriate.

5. REGULATION AFFECTED. 49 CFR 172.101.

6. MODES OF TRANSPORTATION AUTHORIZED. Cargo aircraft only.

7. SAFETY CONTROL MEASURES. Packaging prescribed is strong wooden or metal boxes.

8. SPECIAL PROVISIONS.

a. A copy of this exemption must be carried aboard each aircraft used to transport packages covered by this exemption.

b. The carrier must conform to the requirements of 49 CFR 175.320(b) except subparagraphs (5) and (7).

c. This exemption authorizes shipments of the Class A and B explosives described above including Detonating fuze, Class C explosive and certain non hazardous general cargo.

d. Detonating fuzes must be loaded as far away from Class A explosives as is practicable.

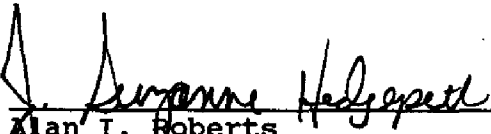
e. The shipment is scheduled to depart the United Kingdom on September 6, 1990 and stop at Wright Patterson Air Force base, Dayton, Ohio; Honolulu, Hawaii and Guam prior to landing at Pusan, South Korea. No cargo is permitted to be loaded or unloaded at any of the intermediate stops. The air carrier is Anglo Airlines Ltd.

f. This exemption does not grant authority to use foreign controlled airspace or airports outside the United States.

9. REPORTING REQUIREMENTS. Any incident involving fire, explosion, loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable.

10. EXPIRATION DATE. April 15, 1991, or upon completion of four shipments whichever occurs earlier.

Issued at Washington, D.C.:

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Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

DEC 14 1990

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C., 20590.
Attention: Exemptions Branch.

Dist: FAA.